

## 26SMCV01628 26SMCV01628

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 26SMCV01628 Hearing Date: July 31, 2026 Dept: M

CASE NAME: Taylor, v. Savis

CASE NO.: 26SMCV01628

MOTION: Motion

to Quash Service of Summons

HEARING DATE: 7/31/26

Legal

Standard

"A defendant . . . may serve

and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her. . . ." (CCP § 418.10(a).) A court lacks jurisdiction over a party if there has not been proper service of process. (Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 808.) "When a motion to quash is properly brought, the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence." (Aquila, Inc. v. Sup. Ct. (2007) 148 Cal.App.4th 556, 568.)

"[C]ompliance with the

statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) "[T]he filing of a proof of service creates a rebuttable presumption that the service was proper" but only if it "complies with the statutory requirements regarding such proofs." (Id. at 1441-1442.)

## Analysis

Defendant Niloo Savis moves to quash the service of summons.

## Evidentiary Issues

Defendant's objections are SUSTAINED as to the Savis Taylor Decl., ¶¶ 4-6 (Evid. Code § 1523) and OVERRULED as to the remainder.

## Discussion

The proofs of service in this action indicate Defendant was validly served twice with summons. First, Defendant was served via substitute service by a registered process server on April 2, 2026, via a Doe security guard, at Defendant's usual place of business. The substitute service is facially valid. The proof of service shows that the security guard at the lobby of Defendant's place of business was apparently in charge of the building. The proof of sub-service shows reasonably diligent attempts at service at Defendant's place of business, but that the server was denied access by the security guard. (See *Bein v. Brechtel-Jochim Group, Inc.*, (1992) 6 Cal.App.4th 1387, 1391, 1393 [substitute service was proper by leaving the papers with the gate guard where process server attempted to serve defendants at their residence, but each time was denied access to the area by a gate guard stationed at the community's entrance; "[l]itigants have the right to choose their abodes; they do not have the right to control who may sue or serve them by denying them physical access"].) The fact that the security guard controlled who entered the premises demonstrates that he was in charge of Defendant's place of business. The proof of service also shows the required mailing. The substituted service therefore confers personal jurisdiction over Defendant.

Second, Defendant admits she was personally served at her residential address on May 18, 2026. Defendant argues that service of process was invalid because Jason Taylor, the person who served summons upon Defendant, is disqualified from serving process under CCP section 414.10. Defendant does not show that Mr. Taylor is disqualified under CCP section 414.10. That section states in full: "A summons may be served by any

person who is at least 18 years of age and not a party to the action.” It is undisputed that Mr. Taylor is above the age of 18 and not a party to this action. Defendant contends that Mr. Taylor is Plaintiff Shabnam Savis Taylor’s husband and has “a similar interest” in this action as Plaintiff, which disqualifies him from effecting personal service on Ms. Savis under *Caldwell v. Coppola* (1990) 219 Cal.App.3rd 859. However, *Caldwell* does not support this position. That case regarded a domestic violence injunctive order restraining Rocco F. Coppola from harassing both the applicant, Pamela L. Caldwell, as well as the applicant’s sister, Kim Tucker. (*Id.*, at 861.) Tucker was named as a “family and household member” to be included under the protection of the TRO. (*Id.*, at 863) The appellate court held that service of process was invalid in that action because Tucker personally served Coppola, which violated section 414.10. The court explained: “Including a named protected person in the prohibition of party service under section 414.10 supports the policy of separating persons involved in domestic violence. Here, the personal service on Coppola was not effective because of Tucker’s significant similarity of interest with the named plaintiff, Caldwell. We hold a named person protected under a domestic violence injunctive order cannot validly personally serve such orders and related legal process on a defendant.” (*Id.*, at 865.) The instant action is readily distinguishable. Here, Mr. Taylor does not hold a similarity of interest with the named Plaintiff. He is not a named party to this action like the protected parties in *Caldwell*. He is merely Plaintiff’s husband. Defendant does not cite any authority that a relative or spouse of a party to the action cannot serve summons. Defendant also cites *Sullivan v. Sullivan* (1967) 256 Cal.App.2d 301, which is likewise distinguishable. In that marital dissolution action, the husband (a direct party to the action) had served his wife summons, but had his daughter falsely sign the proof of service. Because the service had actually been accomplished by the plaintiff himself, service was invalid under section 414.10.

Finally, Defendant does not show that Mr. Taylor cannot serve summons as a prospective necessary party or cross-defendant to this action. Defendant does not present evidence that complete relief cannot be accorded among those already parties based on the complaint on file. The complaint does not show that Mr. Taylor claims an interest relating to the subject of the action. Rather, only Plaintiff claims half of the interest in the subject properties (including the real property, the accounts, and personal property). Defendant’s evidence does not show that Mr. Taylor is so situated that the disposition of the action in his absence may (i) as a

practical matter impair or impede his ability to protect his interest or (ii) leave any of the other parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. (CCP § 389.) Critically, even assuming that Mr. Taylor is a necessary party, Defendant does not present authority that a necessary party is a “party” under section 414.10. Likewise, Defendant does not present any authority that a prospective cross-defendant on a theoretical cross-complaint cannot serve summons prior to their addition in the case.

Accordingly, the motion is DENIED.